

STATE OF NEW YORK

5786--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 20, 2025

Introduced by M. of A. SOLAGES, BURDICK -- read once and referred to the Committee on Corporations, Authorities and Commissions -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public service law, in relation to prohibiting termination of residential utility service during forecasts of extreme temperature

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph (c) of subdivision 3 of section 32 of the public
2 service law, as added by chapter 713 of the laws of 1981, is amended to
3 read as follows:

4 (c) Special procedures for cold weather periods. [~~(i) The commission~~
5 ~~shall establish procedures to be followed by a utility or municipality~~
6 ~~supplying heat related service in cold weather periods. Such procedures~~
7 ~~shall be designed to identify and assist, prior to termination of~~
8 ~~service, those residents who may suffer serious impairment to health or~~
9 ~~safety as a result of any such termination. The commission shall estab-~~
10 ~~lish the applicable cold weather periods; specify criteria for identify-~~
11 ~~ing residents who are likely to suffer serious impairments, and require~~
12 ~~that such service not be terminated unless a representative of the util-~~
13 ~~ity or municipality makes a diligent effort to contact by telephone or~~
14 ~~in person an adult resident of the customer's premises at least seven-~~
15 ~~ty two hours prior to termination, makes a personal visit at the time of~~
16 ~~termination and provides the customer with information regarding the~~
17 ~~protections available under this article. The commission shall provide~~
18 ~~for the manner in which such contacts and personal visits are made.~~

19 ~~(ii)]~~ The commission shall [~~also~~] require a utility or municipality
20 supplying service to continue service to customers where a serious
21 impairment to health or safety is likely to result from termination of
22 service and the person supplied is unable because of mental or physical

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 problems to manage [~~his or her~~] their own resources or to protect
2 [~~himself or herself~~] themselves from neglect or hazardous situations with-
3 out the assistance of others. Doubts shall be resolved in favor of
4 continued service. Continuations of service shall be for a period of
5 time to be established by the commission. The commission shall consult
6 with the department of social services and the state office for the
7 aging in implementing the provisions of this paragraph.

8 § 2. Section 32 of the public service law is amended by adding a new
9 subdivision 3-a to read as follows:

10 3-a. (a) For the purposes of this subdivision, the term "forecast of
11 extreme temperature" means a national weather service forecast of ninety
12 degrees Fahrenheit or above on the national weather service heat index
13 (apparent temperature) during any time of day or night or thirty-two
14 degrees Fahrenheit or below during any time of day or night.

15 (b) A utility or municipality supplying residential heat or electric-
16 ity shall not terminate such heat or electricity the day of a forecast
17 of extreme temperature, or if such forecast of extreme temperature
18 precedes a holiday or weekend day, on any day during such holiday or
19 weekend day.

20 (c) Nothing in this subdivision shall be interpreted or otherwise
21 construed as preempting settlements filed with the commission or
22 department that are more strict than those contained in this subdivi-
23 sion.

24 § 3. This act shall take effect immediately.